

SENATE No. 1298

The Commonwealth of Massachusetts

PRESENTED BY:

Sal N. DiDomenico

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act creating fairness in workers' compensation disfigurement benefits.

PETITION OF:

NAME:

Sal N. DiDomenico

DISTRICT/ADDRESS:

Middlesex and Suffolk

SENATE No. 1298

By Mr. DiDomenico, a petition (accompanied by bill, Senate, No. 1298) of Sal N. DiDomenico for legislation relative to fairness in worker's compensation disfigurement benefits. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1159 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act creating fairness in workers' compensation disfigurement benefits.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Subsection (k) of section 36 of chapter 152 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the following words "fifteen thousand
3 dollars" and inserting in place thereof the following words:- "not to exceed a sum equal to the
4 average wage in the commonwealth on the date of the injury multiplied by thirty, as determined
5 pursuant to subsection (a) of section 29 of chapter 151A"

6 and by striking out the following words:- "No amount shall be payable under this section
7 for disfigurement that is purely scar-based, unless such disfigurement is on the face, neck, or
8 hands."